

HIGH COURT AND SUBORDINATE COURTS

ONE HIERARCHY, CONSTITUTIONALLY SIGNIFICANT — HIGH COURT APPOINTMENTS, QUALIFICATION — TRANSFER, ACTING/ADDITIONAL JUDGES AND — ORIGINAL, APPELLATE, WRIT AND — ARTICLE 226 VERSUS 32 — DISTRICT JUDGES AND SUBORDINATE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

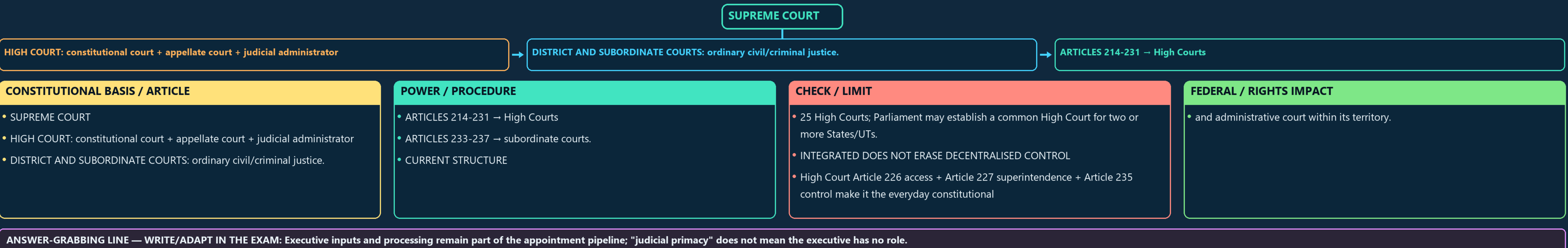
Approval: FALSE Pending user review active generation g2 repaired in place for answer-line and visual-boundary quality all prior artifacts unchanged

CORE BEFORE EXTRA prior artefacts unchanged exact same master drives poster and tiles

00

STAGE 00 ONE HIERARCHY, CONSTITUTIONALLY SIGNIFICANT HIGH COURTS

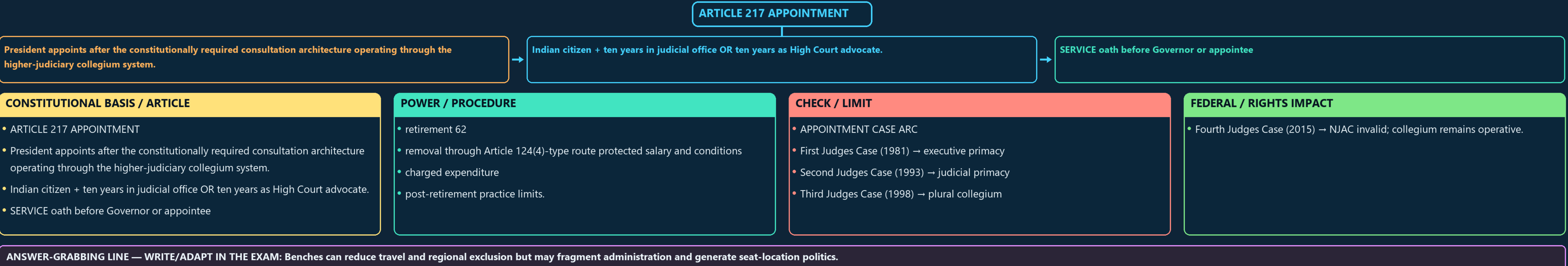
ONE HIERARCHY, CONSTITUTIONALLY SIGNIFICANT HIGH COURTS SUPREME COURT HIGH COURT CONSTITUTIONAL COURT + APPELLATE COURT + JUDICIAL ADMINISTRATOR DISTRICT AND SUBORDINATE COURTS ORDINARY CIVIL/CRIMINAL JUSTICE ARTICLES 214-231 HIGH COURTS



01

STAGE 01 HIGH COURT APPOINTMENTS, QUALIFICATION AND INDEPENDENCE

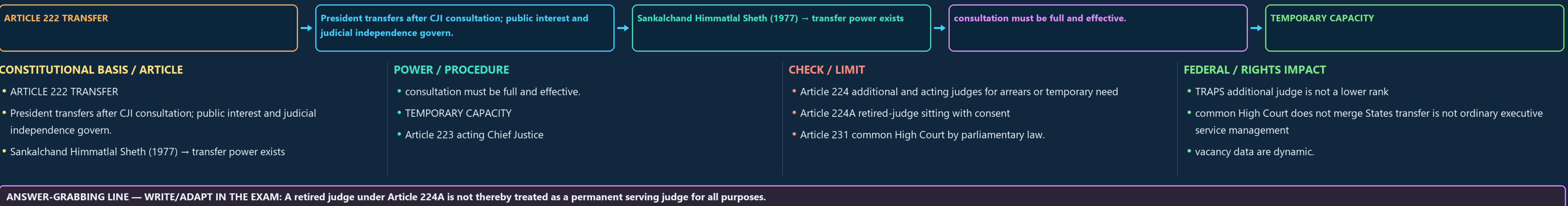
HIGH COURT APPOINTMENTS, QUALIFICATION AND INDEPENDENCE ARTICLE 217 APPOINTMENT PRESIDENT APPOINTS AFTER THE CONSTITUTIONALLY REQUIRED CONSULTATION ARCHITECTURE OPERATING INDIAN CITIZEN + TEN YEARS IN JUDICIAL OFFICE OR SERVICE OATH BEFORE GOVERNOR OR APPOINTEE RETIREMENT 62 REMOVAL THROUGH ARTICLE 124(4)-TYPE ROUTE PROTECTED SALARY AND CONDITIONS CHARGED EXPENDITURE



02

STAGE 02 TRANSFER, ACTING/ADDITIONAL JUDGES AND COMMON HIGH COURTS

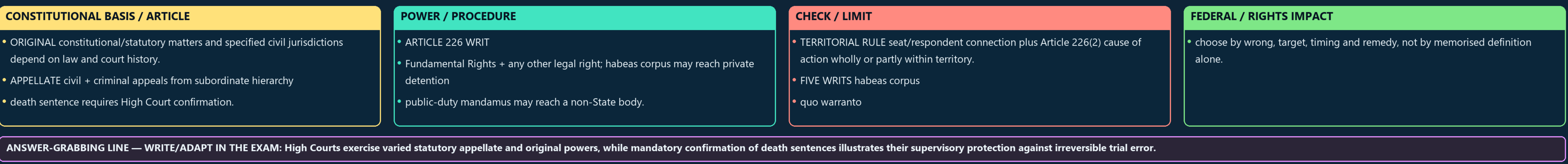
TRANSFER, ACTING/ADDITIONAL JUDGES AND COMMON HIGH COURTS ARTICLE 222 TRANSFER PRESIDENT TRANSFERS AFTER CJ CONSULTATION; PUBLIC INTEREST AND JUDICIAL SANKALCHAND HIMMATLAL SHETH (1977) TRANSFER POWER EXISTS CONSULTATION MUST BE FULL AND EFFECTIVE. TEMPORARY CAPACITY ARTICLE 223 ACTING CHIEF JUSTICE



03

STAGE 03 ORIGINAL, APPELLATE, WRIT AND TERRITORIAL JURISDICTION

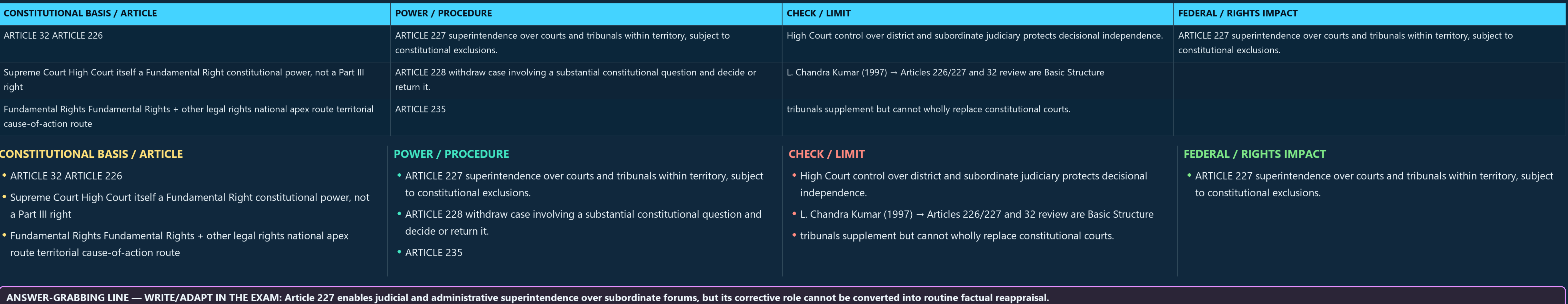
ORIGINAL, APPELLATE, WRIT AND TERRITORIAL JURISDICTION ORIGINAL CONSTITUTIONAL/STATUTORY MATTERS AND SPECIFIED CIVIL JURISDICTIONS DEPEND ON APPELLATE CIVIL + CRIMINAL APPEALS FROM SUBORDINATE HIERARCHY DEATH SENTENCE REQUIRES HIGH COURT CONFIRMATION. ARTICLE 226 WRIT FUNDAMENTAL RIGHTS + ANY OTHER LEGAL RIGHT; HABEAS CORPUS PUBLIC-DUTY MANDAMUS MAY REACH A NON-STATE BODY TERRITORIAL RULE SEAT/RESPONDENT CONNECTION PLUS ARTICLE 226(2) CAUSE OF



04

STAGE 04 ARTICLE 226 VERSUS 32, SUPERINTENDENCE AND CONTROL

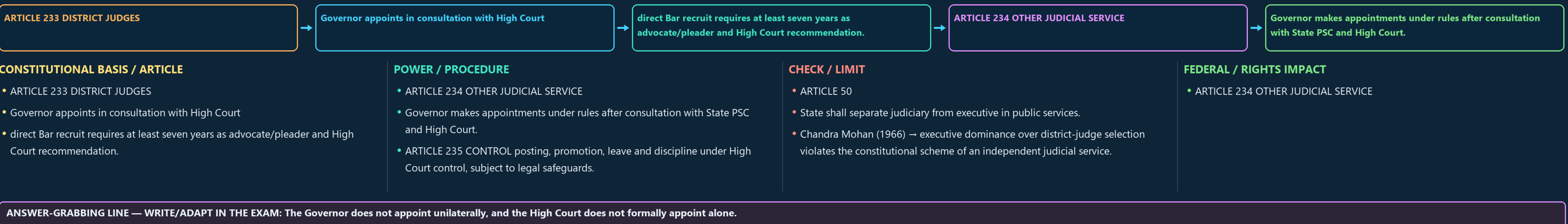
ARTICLE 226 VERSUS 32, SUPERINTENDENCE AND CONTROL ARTICLE 32 ARTICLE 226 SUPREME COURT HIGH COURT ITSELF A FUNDAMENTAL RIGHT CONSTITUTIONAL FUNDAMENTAL RIGHTS FUNDAMENTAL RIGHTS + OTHER LEGAL RIGHTS NATIONAL ARTICLE 227 SUPERINTENDENCE OVER COURTS AND TRIBUNALS WITHIN TERRITORY ARTICLE 228 WITHDRAW CASE INVOLVING A SUBSTANTIAL CONSTITUTIONAL QUESTION ARTICLE 235 HIGH COURT CONTROL OVER DISTRICT AND SUBORDINATE JUDICIARY PROTECTS



05

STAGE 05 DISTRICT JUDGES AND SUBORDINATE JUDICIAL INDEPENDENCE

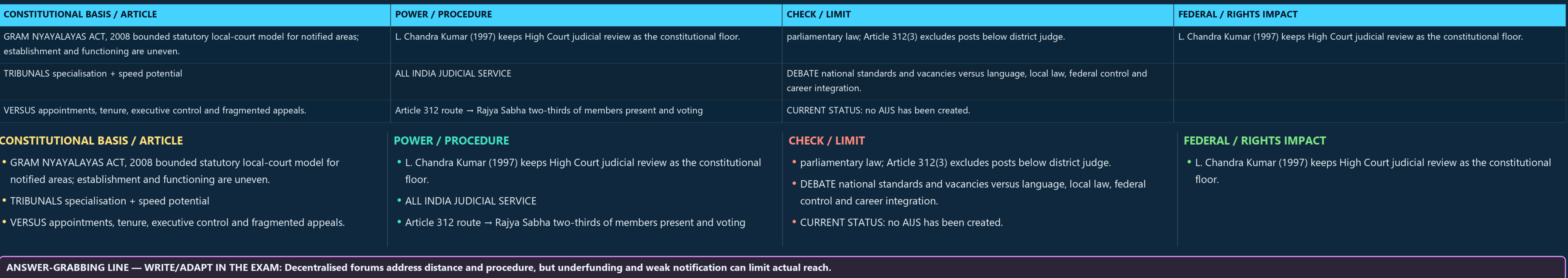
DISTRICT JUDGES AND SUBORDINATE JUDICIAL INDEPENDENCE ARTICLE 233 DISTRICT JUDGES GOVERNOR APPOINTS IN CONSULTATION WITH HIGH COURT DIRECT BAR RECRUIT REQUIRES AT LEAST SEVEN YEARS AS ARTICLE 234 OTHER JUDICIAL SERVICE GOVERNOR MAKES APPOINTMENTS UNDER RULES AFTER CONSULTATION WITH STATE ARTICLE 235 CONTROL POSTING, PROMOTION, LEAVE AND DISCIPLINE UNDER ARTICLE 50



06

STAGE 06 GRAM NYAYALAYAS, TRIBUNALS AND THE AIJS DEBATE

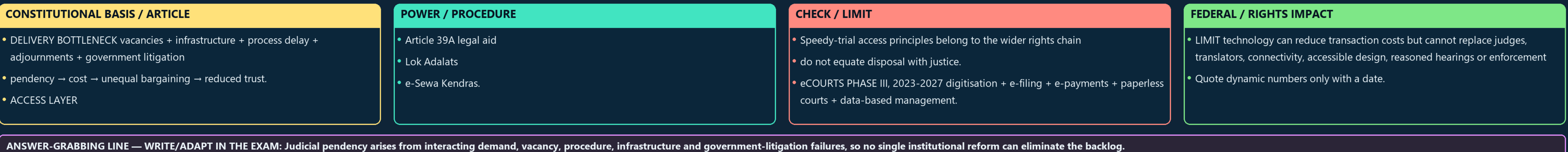
GRAM NYAYALAYAS, TRIBUNALS AND THE AIJS DEBATE GRAM NYAYALAYAS ACT, 2008 BOUNDED STATUTORY LOCAL-COURT MODEL FOR TRIBUNALS SPECIALISATION + SPEED POTENTIAL VERSUS APPOINTMENTS, TENURE, EXECUTIVE CONTROL AND FRAGMENTED APPEALS. L. CHANDRA KUMAR (1997) KEEPS HIGH COURT JUDICIAL REVIEW ALL INDIA JUDICIAL SERVICE ARTICLE 312 ROUTE RAJYA SABHA TWO-THIRDS OF MEMBERS PRESENT AND VOTING



07

STAGE 07 VACANCIES, PENDENCY, LEGAL AID AND ECOURTS

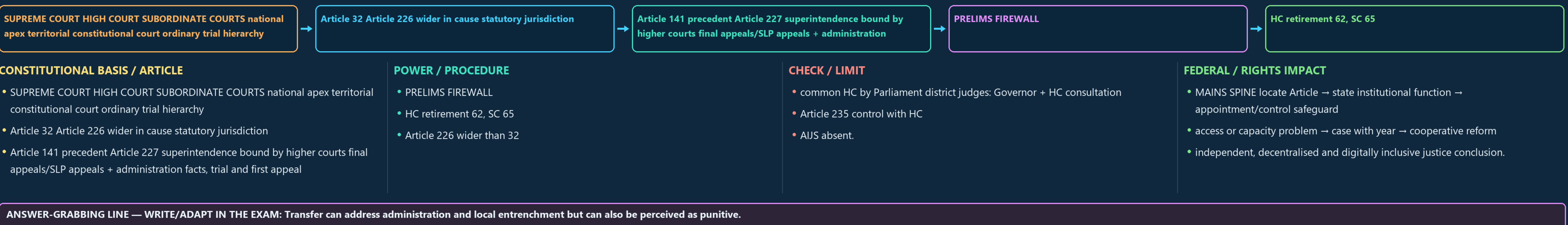
VACANCIES, PENDENCY, LEGAL AID AND ECOURTS DELIVERY BOTTLENECK VACANCIES + INFRASTRUCTURE + PROCESS DELAY + UNEQUAL BARGAINING REDUCED TRUST ACCESS LAYER ARTICLE 39A LEGAL AID LOK ADALATS E-SEWA KENDRAS.



08

STAGE 08 SC-HC-SUBORDINATE COMPARISON, TRAPS AND ANSWER SPINE

SC-HC-SUBORDINATE COMPARISON, TRAPS AND ANSWER SPINE SUPREME COURT HIGH COURT SUBORDINATE COURTS NATIONAL APEX TERRITORIAL ARTICLE 32 ARTICLE 226 WIDER IN CAUSE STATUTORY JURISDICTION ARTICLE 141 PRECEDENT ARTICLE 227 SUPERINTENDENCE BOUND BY HIGHER PRELIMS FIREWALL HC RETIREMENT 62, SC 65 ARTICLE 226 WIDER THAN 32 COMMON HC BY PARLIAMENT DISTRICT JUDGES



E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

